

Court No. - 1

Case :- WRIT - C No. - 4087 of 2020

Petitioner :- Raja Yadav @ Raja Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Rajesh Kumar Verma, learned counsel for the petitioner, Sri Mahboob Ahmad, learned Counsel for the respondent Electricity department and perused the record.

In this petition the petitioner has questioned the recovery citation dated 7.12.2019 for sum of Rs.2 lakhs on the ground that without conducting the proceeding as per provisions of Electricity Supply Code, 2005, relevant provisions of Electricity Act, respondents have proceeded to recover the said amount.

We made a pointed query to the learned counsel for the respondent as to whether the statement made by learned counsel for the petitioner is correct or not, he submits that on 21.5.2019 checking was done of the electricity connection and a new meter was installed in the premises of the petitioner on 17.6.2019. Notice of provisional assessment has been issued requiring the petitioner to submit reply. He has handed over the copies of the above two documents to the petitioner in the Court itself.

In such above view of the matter, therefore, we hereby provide that the petitioner shall submit reply/objection to the notice of provisional assessment within a period of three weeks from today. In the event, as directed herein above, reply is submitted by the petitioner, the same shall be considered and disposed of within the further period of four weeks. Needless to say that the final order to be passed thereon, shall be reasoned and speaking one. So far as recovery citation is concerned, it will abide by the final orders to be passed by respondent no.3 as directed herein above and no coercive measure shall be taken against the petitioner in the meanwhile.

(Ajit Kumar, J.)

(Ramesh Sinha, J.)

Order Date :- 6.2.2020

Gaurav